

HOUSE No. 1877**The Commonwealth of Massachusetts**

PRESENTED BY:

Joseph W. McGonagle, Jr.*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to assault and battery upon a transit worker.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph W. McGonagle, Jr.</i>	<i>28th Middlesex</i>	<i>1/16/2025</i>
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>2/6/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>2/12/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>2/12/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/12/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/12/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/12/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>2/27/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/5/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/6/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/12/2025</i>
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>3/12/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/18/2025</i>
<i>James M. Murphy</i>	<i>4th Norfolk</i>	<i>3/18/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/19/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>3/20/2025</i>
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>3/20/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/24/2025</i>

<i>David Biele</i>	<i>4th Suffolk</i>	<i>3/25/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/25/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/10/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>6/11/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>6/11/2025</i>

HOUSE No. 1877

By Representative McGonagle of Everett, a petition (accompanied by bill, House, No. 1877) of Joseph W. McGonagle, Jr., and others relative to the offense of assault and battery upon transit workers. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to assault and battery upon a transit worker.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13D of chapter 265 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 1, after the word “battery,” the following
3 words:- including assault and battery by means of a bodily substance,.

4 SECTION 2. Said section 13D of said chapter 265 of the General Laws, as so appearing,
5 is hereby further amended by inserting, in line 2, after the word “employee,” the following
6 words:- including but not limited to a public transit worker,.

7 SECTION 3. Said section 13D of said chapter 265 of the General Laws, as so appearing,
8 is hereby further amended by inserting, in line 6, after the word “dollars.” the following
9 sentence:- For the purposes of this section, “bodily substance” shall mean any human secretion,
10 discharge or emission including, but not limited to, blood, saliva, mucous, semen, urine or feces.